

IN THE LABOUR COURT OF SOUTH AFRICA
(HELD AT CAPE TOWN)

Case No: 2026-083299
Concurrent Case No: 2026-077546

In the matter between:
WILBUR WILLIAM MATTHEE
Plaintiff / Applicant
and
AFROCENTRIC HEALTH (PTY) LTD
First Defendant / Respondent
MEDSCHEME HOLDINGS (PTY) LTD
Second Defendant / Respondent

PRE-TRIAL MINUTE
FILED UNILATERALLY BY THE PLAINTIFF

(In terms of Rule 22 of the Labour Court Rules, 2024 — following documented non-cooperation by Respondents)

Court	Labour Court of South Africa (Cape Town)
Case No.	2026-083299
Concurrent Case	2026-077546
Plaintiff	Wilbur William Matthee (Self-Represented)
First Defendant	AfroCentric Health (Pty) Ltd (Reg. No. 1996/009540/07)
Second Defendant	Medscheme Holdings (Pty) Ltd
Date of Filing	11 June 2026
Filed By	Plaintiff — Unilaterally (Rule 22, Labour Court Rules 2024)

PREAMBLE

This Pre-Trial Minute is filed unilaterally by the Plaintiff, Wilbur William Matthee, appearing in person, pursuant to the documented failure and refusal of the Respondents to cooperate in convening a joint pre-trial conference within the statutory timeframe prescribed by Rule 22 of the Labour Court Rules, 2024, following the close of pleadings on 21 May 2026.

NOTICE OF AMICABLE DISPOSITION — WITHOUT PREJUDICE CONTEXT

The Plaintiff records that, on 4 June 2026, he received and responded to a WITHOUT PREJUDICE settlement approach from the Respondents' attorneys, Deneys Reitz Inc. (Ms Frances Barker). The Plaintiff replied on 4 June 2026 confirming his willingness to engage on a without prejudice basis via email, and expressly indicated his amenability to resolving this matter.

As at the date of this filing (11 June 2026), the Respondents have not replied to the Plaintiff's response of 4 June 2026. The Plaintiff has not pursued the Respondents for a reply, as they initiated the without prejudice approach — it was not solicited by the Plaintiff.

The Plaintiff's position remains unchanged: he is open to an amicable, lawful resolution of all pending matters. He files this Minute not to foreclose settlement, but because he cannot allow the statutory pre-trial process to remain indefinitely suspended while awaiting a response that has not been forthcoming. Should the Respondents engage constructively prior to the Registrar processing this filing, the Plaintiff will not oppose a jointly-convened pre-trial conference being substituted for this unilateral minute.

1. PARTIES

1.1 The Plaintiff is Wilbur William Matthee, a Specialist Registered Nurse (RN | BTech General Nursing | PGDip Health Services Management, NQF 8), appearing in person at 15 Bellevue Street, Voorbrug, Cape Town, 7001. Email: info@ethichawks.co.za.

1.2 The First Defendant is AfroCentric Health (Pty) Ltd (Registration No: 1996/009540/07), a company duly incorporated in the Republic of South Africa.

1.3 The Second Defendant is Medscheme Holdings (Pty) Ltd, a subsidiary of the First Defendant and the Plaintiff's direct employer.

1.4 The Respondents are represented by Mr Vijay Makenjee. In the Labour Court matters.

1.5 The Respondents are represented by Deneys Reitz Inc., per Jason Whyte (Director) and Frances Barker (Associate), 9th Floor, 117 on Strand, Cape Town. Email: jason.whyte@deneys.co.za in the high court matters. The Plaintiff records that these legal representatives are actively participating in the "without prejudice" engagement referenced in the Preamble and Section 3 below, yet have failed to provide any substantive response to the Plaintiff's 4 June 2026 reply confirming his willingness to engage via email. To date, no meeting date, no draft framework, and no further correspondence has been received from Deneys Reitz Inc. following that exchange.

2. PRELIMINARY PROCEDURAL MATTERS OF RECORD

2.1 Corporate Identity Defect — Statement of Response is a Procedural Nullity

The Respondents' Statement of Response dated 19 May 2026 was signed by Mr Vijay Makenjee expressly on behalf of 'AFROCENTRIC RF (PTY) LTD' — a completely distinct, uncited legal entity not a party to these proceedings. No Statement of Response has been filed on behalf of either named Defendant.

Further, the Statement of Response is entirely devoid of a verifying affidavit as mandated by Rule 6 of the Labour Court Rules. An unsworn response signed on behalf of a non-party constitutes a procedural nullity that places no admissible defence before this Honourable Court.

The Plaintiff persists in his prayer for this document to be struck out in limine. This issue is placed before the Registrar for the Court's attention at the earliest opportunity.

2.2 Perjury and Cross-Jurisdictional Deception — Case No. 2026-077546

In paragraph 4 (Ad Para 6 of Part A) of the Statement of Response, Mr Makenjee states under oath:

"The Defendants are not aware of any further claim in the above honorable court with case number 2026-077546."

This sworn statement is demonstrably false. The Group CEO of AfroCentric Investment Corporation Limited, Gerald Neville Van Wyk, expressly acknowledged the existence of both Labour Court matters —

including Case No. 2026-077546 — in his Founding Affidavit in the Western Cape High Court proceedings (Case No. 2026-086906), sworn on 16 April 2026 (see Annexure WWM1 of the Replication). Furthermore, the application in Case No. 2026-077546 was electronically served on the corporate legal office (IR@afrocentrichealth.com and lebohang.mpumlwana@afrocentrichealth.com) on 13 April 2026, with confirmed delivery tracked and opened a documented 21 times prior to the Response being filed.

This constitutes a bad-faith attempt to plead ignorance to avoid default consequences in a concurrent matter while simultaneously acknowledging that matter before a different court. This cross-jurisdictional deception is placed on record and will be raised before this Court at trial.

2.3 Admitted Unlawful Deduction — Ex Facie Liability Established on the Pleadings

In paragraphs 2 and 28 of their Statement of Response, the Defendants state that the July 2025 salary 'aligned to the days worked in July 2025.' This statement constitutes a direct admission that a reduction was applied, while simultaneously advancing a legally untenable justification.

The Plaintiff's verified payslip (Annexure I, Statement of Claim) reflects:

Item	Amount / Percentage
Contractual Gross Normal Earnings	R 36,588.81
Deduction Applied (July 2025)	R 14,811.77
Effective Reduction Percentage	40.47%
Statutory Maximum (BCEA s.34(2))	25.00%
Statutory Excess — Unlawful Overreach	15.47% (R 5,659.50 above the statutory ceiling)

A deduction of 40.47% is illegal on its face. The statutory ceiling in Section 34(2) of the BCEA is absolute and admits of no judicial discretion. Liability is established ex facie the pleadings without the need for any further oral evidence on this issue.

2.4 The "Good luck to you then" Response – Specific Attribution to Mr Vijay Makenjee

The Plaintiff specifically places on record that the five-word response – "Good luck to you then" – quoted in Section 3 of this Minute was authored and transmitted by Mr Vijay Makenjee, the Respondents' senior Employee Relations Specialist, on 2 June 2026 at 12:29. Mr Makenjee is the same individual who signed the procedurally defective Statement of Response dated 19 May 2026 on behalf of a non-party entity ('AFROCENTRIC RF (PTY) LTD'), and who made the sworn statement denying awareness of Case No. 2026-077546 – a statement the Plaintiff has demonstrated to be false through the read-receipt tracking record (Annexure D) and the Van Wyk Founding Affidavit (Annexure E).

The Plaintiff submits that Mr Makenjee's conduct – from the defective pleading, to the perjurious denial, to the "Good luck to you then" dismissal of a statutory compliance request, to the subsequent silence following the 4 June 2026 without prejudice approach – constitutes a coherent pattern of bad-faith conduct attributable directly to the Respondents' Employee Relations function. The Plaintiff respectfully invites the Court to note that Mr Makenjee is the primary point of contact for the Respondents on Labour Court proceedings (IR@afrocentrichealth.com), and that his conduct has consistently frustrated rather than facilitated the efficient adjudication of this matter.

3. PROCEDURAL TIMELINE — NON-COOPERATION RECORD AND SETTLEMENT STALLING

The following chronology is placed before the Registrar for the record:

Date	Event
21 May 2026	Plaintiff's Replication served on Respondents at IR@afrocentrichealth.com and lebohang.mpumlwana@afrocentrichealth.com. Pleadings close.
29 May 2026	Plaintiff formally proposes pre-trial conference and requests three compliant dates within the statutory window.
1 Jun 2026 (15:08)	Respondents retroactively dispute proper service of Replication — allege pleadings have not closed.
1 Jun 2026 (18:43)	Respondents propose 22 June 2026 as pre-trial conference date — falling outside the statutory window.
1 Jun 2026 (19:23)	Plaintiff rejects 22 June as non-compliant; provides three compliant dates: 3, 4, and 5 June 2026.
1 Jun 2026 (19:43)	Respondents cite Rule 22 to purportedly justify 22 June. Plaintiff disputes this interpretation.
1 Jun 2026 (20:08)	Plaintiff formally notifies Respondents of intention to file unilaterally on 10 June 2026 if no compliant response received.
2 Jun 2026 (12:29)	Mr Vijay Makenjee's final substantive response to all of the above: 'Good luck to you then.' (see Annexure A)
2 Jun 2026 (14:53)	Deneys Attorneys acknowledge formal notice. No compliant dates proposed.
3 Jun 2026	Plaintiff formally notifies all parties in writing of procedural non-cooperation and intent to approach Registrar unilaterally.
4 Jun 2026	Respondents transmit WITHOUT PREJUDICE settlement correspondence to Plaintiff (Ms Barker / Deneys).
4 Jun 2026	Plaintiff replies on the same day confirming amenability to email-based without prejudice engagement.
4–11 Jun 2026	Respondents have not replied to the Plaintiff's 4 June 2026 response. No further without prejudice correspondence received.
11 Jun 2026	No substantive without prejudice correspondence, no proposed meeting date, no draft settlement framework, and no engagement whatsoever has been received from Deneys Reitz Inc. or the Respondents since 4 June 2026. The Plaintiff is therefore left with no alternative but to proceed with this Unilateral Pre-Trial Minute to prevent indefinite suspension of the statutory pre-trial process. Plaintiff files this Unilateral Pre-Trial Minute with the Registrar.

4. NATURE OF THE CLAIM

The Plaintiff's claims arise from the following distinct causes of action:

4.1 Unlawful salary deduction in contravention of Section 34(1) and Section 34(2) of the Basic Conditions of Employment Act 75 of 1997 (BCEA) — a deduction of R14,811.77 (40.47% of gross salary) applied in July 2025, exceeding the absolute statutory ceiling of 25% by a margin of 15.47%, without written consent and without compliance with the Respondents' own HCBP staggered-recovery policy.

4.2 Constructive dismissal in terms of Section 186(1)(e) of the Labour Relations Act 66 of 1995 (LRA), arising from the deliberate creation of an intolerable work environment through financial devastation, medical indifference, targeted psychological hostility, and a prolonged 30-day executive silence following formal escalation.

4.3 Automatically unfair dismissal in terms of Section 187(1)(h) of the LRA — the constructive dismissal constituted occupational detriment in direct retaliation for Protected Disclosures made under the Protected Disclosures Act 26 of 2000 (PDA) regarding the Priority 1 Gexus/DMS system integration failure affecting 1.9 million GEMS beneficiaries.

4.4 Unfair discrimination on protected grounds under the Employment Equity Act 55 of 1998 (EEA), including discrimination on the basis of disability (formally diagnosed severe depression and PTSD) following the Plaintiff's psychiatric hospitalisation.

4.5 Failure to comply with statutory obligations under the Occupational Health and Safety Act 85 of 1993 (OHSA).

5. ISSUES IN DISPUTE

The following material issues remain in dispute between the parties and will require determination at trial:

5.1 Whether the Statement of Response dated 19 May 2026 — filed by an unsworn, non-party entity — constitutes a valid pleading capable of placing any defence before this Court, or whether it falls to be struck out as a procedural nullity.

5.2 Whether the salary deduction of R14,811.77 in July 2025 was authorised under any lawful agreement or statutory provision, and whether the Respondents' characterisation of the reduction as a 'live monthly alignment' is factually and legally sustainable given the mathematical magnitude of the extraction.

5.3 Whether the Respondents' admitted statement — 'The Defendants maintain that the Plaintiff's July 2025 salary aligned to the days worked in July 2025' — constitutes a direct and binding admission of an unlawful deduction, given that only 1–3 isolated days were absent in July 2025.

5.4 Whether the Plaintiff's departure from employment constitutes constructive dismissal within the meaning of Section 186(1)(e) of the LRA.

5.5 Whether the constructive dismissal constitutes an automatically unfair dismissal under Section 187(1)(h) of the LRA, having been executed as a direct consequence of the Plaintiff's Protected Disclosures.

5.6 Whether the Respondents' failure to address — or even engage with — the documented incidents involving the 'Wilma incident,' the CEO confidentiality breach, and the 30-day administrative abandonment constitutes, in law, an implied admission of the intolerable workplace conditions alleged.

5.7 Whether the 'insubordination' reprimand of 31 October 2025 was a lawful disciplinary action or a retaliatory instrument deployed in direct response to the Plaintiff's Protected Disclosure of 23 October 2025.

5.8 The quantum of damages, including consequential, constitutional, and statutory damages arising from the Respondents' conduct under the BCEA, LRA, EEA, and PDA.

5.9 Whether the extension of the interim gag order until March 2027 was deliberately weaponised to obstruct the Plaintiff's statutory right to access UIF benefits.

5.10 The impact of the Respondents' litigation conduct — including procedural obstruction, manufactured service disputes, and deliberate delay tactics — on the Plaintiff's constitutional right of access to justice.

6. AGREED AND COMMON CAUSE FACTS

The following facts are not in dispute and are either admitted in the Respondents' Statement of Response or established by the record:

6.1 The Plaintiff was employed by the Second Defendant (Medscheme Holdings (Pty) Ltd) as a Specialist Registered Nurse and Case Manager, commencing 1 May 2024.

6.2 The Plaintiff was admitted to the Akeso Stepping Stones Clinic on or about 18 March 2025 for treatment of severe depression and PTSD, as confirmed in the Respondents' own Founding Affidavit (para 14, Van Wyk affidavit, Case No. 2026-086906).

6.3 A salary deduction of R14,811.77 was applied to the Plaintiff's July 2025 remuneration. (Respondents' Statement of Response paras 2, 18, and 28; Van Wyk Affidavit para 16.)

6.4 The Plaintiff resigned on 12 December 2025, as admitted by the Respondents in their Statement of Response (para 3) and confirmed by Van Wyk at para 20 of the Founding Affidavit.

6.5 Conciliation in both CCMA matters (WECT23564-25 and WECT24486-25) was held on 9 January 2026 and resulted in certificates of non-resolution.

6.6 An interim interdict (rule nisi) was granted against the Plaintiff by the Western Cape High Court on 16 April 2026, currently operative until 1 March 2027.

6.7 The Plaintiff filed his Replication on 21 May 2026, closing pleadings.

6.8 The Respondents' authorised service email address is IR@afrocentrichealth.com, as designated by Mr Xolile Vincent Manyati in the Notice of Opposition dated 10 December 2025 (CCMA Case WECT23564-25).

7. WITNESSES

7.1 The Plaintiff intends to call the following witnesses:

- (a) Wilbur William Matthee — Plaintiff, in person.
- (b) Expert witnesses (to be confirmed during discovery), including: forensic payroll expert; actuarial expert on loss of earnings; and a medical expert on the Plaintiff's psychiatric injuries and their causal relationship to the Respondents' conduct.
- (c) Such further witnesses as may be identified during the discovery process, including potential fact witnesses regarding the Gexus/DMS system integration failure.

7.2 The Respondents have not participated in this Pre-Trial Minute. Their witness list is accordingly unknown at this stage.

8. DOCUMENTS

8.1 The Plaintiff filed 28 annexures with his Statement of Claim. Additional documents to be discovered include payroll records, IRP5 documentation (including the IRP5 code 3607 overtime discrepancy), HR correspondence, internal governance records relating to the Gexus/DMS integration gap at Medscheme, and the complete Priority 1 Material Risk Report submitted to the AfroCentric Board on 9 December 2025.

8.2 The Plaintiff will seek, through the discovery process, the Respondents' internal HCBP Policy documentation, the complete Mahlangu Root Cause Analysis report, payroll adjustment authorisation records, and all communications within the Employee Relations Department relating to the Plaintiff's grievances.

8.3 A consolidated 526-document forensic evidentiary bundle has been compiled by the Plaintiff and will be tendered in evidence at trial in its cryptographically audited form.

9. ESTIMATED DURATION

The Plaintiff estimates that the trial will require approximately three (3) to five (5) days, subject to:

- (a) The Respondents' cooperation in the discovery process;
- (b) Resolution of the preliminary procedural challenge to the Respondents' Statement of Response; and
- (c) The scope of expert testimony ultimately required.

10. QUANTUM OF RELIEF SOUGHT

The Plaintiff's claims, as set out in the Statement of Claim and Replication, include the following relief:

Head of Claim	Amount / Basis
Repayment of Unlawfully Deducted Salary (BCEA s.34)	R 14,811.77 + prescribed interest
Compensation for Constructive / Automatically Unfair Dismissal (LRA s.194(3))	24 months' remuneration at gross contractual rate
Constitutional damages — deprivation of right to dignity, equality and fair labour practice	To be quantified by actuarial expert

Corrected, legally compliant Certificate of Service	Declaratory relief
Punitive costs on attorney-and-client scale	Cross-jurisdictional deception, bad-faith pleading, systematic obstruction

11. NOTE ON RESPONDENTS' NON-COOPERATION

This Minute is filed unilaterally due to the Respondents' documented and deliberate failure to engage within the statutory timeframe. The Respondents are a well-resourced corporate entity represented by a major commercial law firm. The Plaintiff is a self-represented litigant in active humanitarian crisis — without running water since January 2026, facing eviction, deregistered by the SANC due to inability to pay an R870 annual fee, and suffering formally diagnosed severe depression and PTSD.

Against this backdrop, the Respondents' senior Employee Relations Specialist chose — as his final substantive response to a statutory compliance request — to write five words: 'Good luck to you then.'

This Court is respectfully invited to consider this conduct when exercising its discretion on costs and case management at trial, and to note the correlation between this litigation conduct and the broader strategy of attrition documented in the parliamentary record and correspondence filed in these proceedings.

Furthermore, the Respondents' without prejudice proposal of 4 June 2026 — which the Plaintiff promptly and in good faith accepted as a basis for email-based engagement — has yielded no substantive follow-up from either the Respondents or their legal representatives. As of the date of filing this Minute (11 June 2026), no meeting date, no draft settlement framework, and no further correspondence has been received. The Plaintiff is compelled to record his belief that this proposal was extended not as a genuine attempt at resolution, but as a tactical device to delay the filing of this Unilateral Pre-Trial Minute and to further exhaust the Plaintiff through attrition. The Plaintiff remains amenable to settlement, but cannot permit the statutory pre-trial process to be indefinitely suspended by unfulfilled promises of engagement.

12. RELIEF SOUGHT FROM THE REGISTRAR

The Plaintiff respectfully requests that the Registrar:

- 12.1** Accept this Unilateral Pre-Trial Minute for filing and place it before the presiding Judge for attention;
- 12.2** Note the Respondents' documented non-cooperation for the record;
- 12.3** Facilitate the enrolment of this matter for trial at the earliest available date; and
- 12.4** Bring the preliminary procedural challenge to the Respondents' Statement of Response (Section 2.1 above) to the attention of the Court for appropriate direction.

Signed at Cape Town on this 11th day of June 2026



SR. WILBUR WILLIAM MATTHEE

Plaintiff / Applicant in Person

RN | BTech General Nursing | PGDip Health Services Management (NQF 8)

Founder, EthicHawks Forensic Governance & Compliance Consultancy
info@ethichawks.co.za | 069 635 1435 | 15 Bellevue Street, Voorbrug, Cape Town, 7001

TO:

THE REGISTRAR OF THE LABOUR COURT, Cape Town

Flsmail@judiciary.org.za

AND TO:

DENEYS REITZ ATTORNEYS (Attorneys of Record for the Respondents)

Per: Jason Whyte (Director) / Frances Barker (Associate)

jason.whyte@deneys.co.za | Frances.Barker@deneys.co.za

Ref: AFR1282

AND TO:

AFROCENTRIC HEALTH (PTY) LTD / MEDSCHEME HOLDINGS (PTY) LTD

Per: Vijay Makenjee / Group Company Secretary: Lebohang Mpumlwana

IR@afrocentrichealth.com | lebohang.mpumlwana@afrocentrichealth.com

ANNEXURES

Ann. Annexure A: Email from V. Makenjee dated 2 June 2026 — 'Good luck to you then'
(complete email thread: 29 May – 2 June 2026)

Ann. Annexure B: Without Prejudice correspondence — Deneys to Plaintiff dated 4 June 2026;
Plaintiff's Reply dated 4 June 2026 confirming willingness to engage

From : Vijay.Makenjee@AfroCentricHealth.com

ANN1

To : "Wilbur Matthee" <info@ethichawks.co.za>

Subject : RE: Re: PROPOSAL FOR PRE-TRIAL CONFERENCE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & ANOTHER – CASE NO: 2026-083299

Date : 02 Jun 2026 12:29

Good luck to you then.

From: Wilbur Matthee <info@ethichawks.co.za>

Sent: 01 June 2026 20:08

To: Vijay Makenjee <Vijay.Makenjee@AfroCentricHealth.com>

Subject: RE: Re: PROPOSAL FOR PRE-TRIAL CONFERENCE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & ANOTHER – CASE NO: 2026-083299

This message originated from outside your organization

Dear Mr. Makenjee,

I refer to your email of 1 June 2026 regarding the Labour Court Rules and the scheduling of the pre-trial conference.

For the record, formal service of the Plaintiff's Replication was successfully executed on 21 May 2026, when it was transmitted to both the Respondent's Industrial Relations portal (IR@afrocentrichealth.com) and the Group Company Secretary, Ms. Lebohang Mpumlwana. Consequently, the respondent has been in possession of the pleadings since 21 May 2026.

I do not accept your interpretation of the 14-day timeline or your proposed date of 22 June 2026. Your insistence on a date falling well outside the statutory limit constitutes a procedural stall and an attempt at litigation attrition.

My position remains that the pre-trial conference must be held within the 14-day period mandated by Rule 6 of the Labour Court Rules, which commenced upon the service of pleadings on 21 May 2026. Should you fail to engage within the remaining statutory window, I will proceed to draft and file the Pre-Trial Minute with the Registrar of the Labour Court unilaterally, noting your non-cooperation as a matter of record. Accordingly, please be advised that I shall approach the Registrar of the Labour Court on 10 June 2026 to file the Pre-Trial Minute unilaterally in the absence of your cooperation.

I consider this matter closed for the purposes of correspondence and shall not enter into further dialogue regarding these procedural requirements.

Kindly be guided accordingly.

Yours sincerely,

Sr. Wilbur William Matthee
Plaintiff / Applicant in Person

--- On Mon, 01 Jun 2026 19:43:16 +0200 Vijay.Makenjee@AfroCentricHealth.com wrote ---

Dear Mr Matthee,

Please see attached copy of the Labour Court Rules.

Kindly refer to the definition of "days" and rule 22 (pre-trial).

22 June 2026 is within the 15 days permitted by rule 22.

I am unfortunately unavailable until 22 June 2026 at 10:00.

Kind Regards,

Vijay Makenjee

Advanced Specialist: Employee Relations

+27 76 305 8838

Vijay.Makenjee@Afrocentrichealth.com

37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen,
1709

www.afrocentric.za.com

Please consider the environment before printing this email

CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

From: Wilbur Matthee <info@ethichawks.co.za>

Sent: 01 June 2026 19:23

To: Vijay Makenjee <Vijay.Makenjee@AfroCentricHealth.com>

Subject: Re: Re: PROPOSAL FOR PRE-TRIAL CONFERENCE: WILBUR WILLIAM MATTHEE v

Importance: High

ANN1

This message originated from outside your organization

Dear Mr. Makenjee,

I acknowledge your proposal to meet on 22 June 2026.

For the record, Labour Court Rule 6 mandates that a pre-trial conference be held within 14 days of the close of pleadings. Your proposal falls outside this mandated statutory timeframe.

To ensure the matter remains compliant with the Rules of the Labour Court, I am available at the following dates/times within the 14-day window: [3/6/2026/12:00], [4/6/2026/12:00], and [5/6/2026/12:00].

Please confirm your selection by COB 2/6/2026] to ensure the joint Pre-Trial Minute is filed on time.

Sincerely,

Sr. Wilbur William Matthee

--- On Mon, 01 Jun 2026 18:43:15 +0200 Vijay.Makenjee@AfroCentricHealth.com wrote ---

Dear Mr Matthee,

I can attend on 22 June 2026 at 10:00.

Get [Outlook for Android](#)

From: Wilbur Matthee <info@ethichawks.co.za>**Sent:** Monday, June 1, 2026 4:17:18 PM**To:** Vijay Makenjee <Vijay.Makenjee@AfroCentricHealth.com>**Cc:** Lebohang Mpumlwana <Lebohang.Mpumlwana@Afrocentrichealth.com>**Subject:** Re: PROPOSAL FOR PRE-TRIAL CONFERENCE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & ANOTHER – CASE NO: 2026-083299**This message originated from outside your organization**

Dear Mr. Makenjee,

RE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & MEDSCHEME HOLDINGS (PTY) LTD - CASE NO: 2026-083299

I note your email below dated 1 June 2026.

To ensure there is absolutely no ambiguity or further administrative delay, please find attached to this email a further copy of the Plaintiff's Replication, served directly to your designated email address as requested.

For the record, the Replication was successfully transmitted to the Respondent's designated Industrial Relations portal (IR@afrocentrichealth.com) and the Head of Legal/Group Company Secretary, Ms. Lebohang Mpumlwana, on 21 May 2026. As such, proper institutional service and knowledge have already been established.

Pleadings are effectively closed. To maintain compliance with Rule 6 of the Labour Court Rules, the requirement to hold a pre-trial conference within 14 days remains operative.

Please provide your three proposed dates and times for the pre-trial conference via Microsoft Teams by the close of business on 5 June 2026, as previously requested, so we may finalize the joint Pre-Trial Minute.

Yours sincerely,

Sr. Wilbur William Matthee
Plaintiff / Applicant in Person
Email: info@ethichawks.co.za

Sent from Zoho Mail on Android

--- On Mon, 01 Jun 2026 15:08:55 +0200 Vijay.Makenjee@AfroCentricHealth.com wrote ---

Dear Mr Matthee,

I refer to your below email.

Please note, as per the attached notice, I specified my email address for the service of documentation on the defendants in this matter.

You have not sent your replication to the stipulated email address. Accordingly, it has not been served on Afrocentric or Medscheme.

Pleadings have therefore not closed.

Kind Regards,

Vijay Makenjee

Advanced Specialist: Employee Relations

+27 76 305 8838

Vijay.Makenjee@Afrocentrichealth.com

<http://www.afrocentric.za.com>

Please consider the environment before printing this email

CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

From: Wilbur Matthee <info@ethichawks.co.za>
Sent: Friday, May 29, 2026 8:16:17 AM
To: CCMA communication <IR@afrocentrichealth.com>
Cc: Lebohang Mpumlwana <Lebohang.Mpumlwana@Afrocentrichealth.com>
Subject: PROPOSAL FOR PRE-TRIAL CONFERENCE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & ANOTHER – CASE NO: 2026-083299

This message originated from outside your organization

Dear Mr. Makenjee and the AfroCentric Legal Department,

RE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & MEDSCHEME HOLDINGS (PTY) LTD – CASE NO: 2026-083299

Following the electronic service of my Replication on 21 May 2026, the pleadings in the above-mentioned matter are now closed.

In accordance with Rule 6 of the Rules for the Conduct of Proceedings in the Labour Court, we are required to hold a pre-trial conference within 14 days of the delivery of the Statement of Response. To ensure compliance with these Rules and to facilitate the timely enrollment of this matter, I propose that we convene the pre-trial conference at your earliest convenience.

Please suggest three dates and times within the next seven (7) days by 5th June 2026 that would suit your schedule to conduct this conference via Microsoft Teams.

I have begun preparing a draft of the Pre-Trial Minute based on the filed pleadings to expedite our discussion. I look forward to your prompt cooperation in finalizing these arrangements so that we may proceed to file the signed Minute with the Registrar.

Kindly acknowledge receipt of this email and confirm your availability.

ANN1

Yours sincerely,

Sr. Wilbur William Matthee
Plaintiff / Applicant in Person

Email: info@ethichawks.co.za

CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

This email has been scanned for email related threats and delivered safely by Mimecast.
For more information please visit <http://www.mimecast.com>

CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

This email has been scanned for email related threats and delivered safely by Mimecast.
For more information please visit <http://www.mimecast.com>

CONFIDENTIALITY:

ANN1

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

This email has been scanned for email related threats and delivered safely by Mimecast.
For more information please visit <http://www.mimecast.com>

CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

This email has been scanned for email related threats and delivered safely by Mimecast.
For more information please visit <http://www.mimecast.com>

From : sedem@parliament.gov.za

ANN2

To : "Wilbur Matthee" <info@ethichawks.co.za>

Subject : RE: URGENT / PRIORITY 1: Imminent Danger to Life and Safety – Request for Immediate Intervention (Wilbur Matthee / Medscheme Whistleblower)

Date : 02 Jun 2026 11:30

Dear Wilbur William Matthee

We acknowledge receipt,

Thank you
Office of the Speaker

From: Wilbur Matthee <info@ethichawks.co.za>

Sent: Tuesday, 02 June 2026 11:21

To: Speaker of the National Assembly <speaker@parliament.gov.za>; NCOP Petitions <NCOP-Petitions@parliament.gov.za>

Cc: Nomaindia Xauka <nxauka@parliament.gov.za>

Subject: URGENT / PRIORITY 1: Imminent Danger to Life and Safety – Request for Immediate Intervention (Wilbur Matthee / Medscheme Whistleblower)

Importance: High

Dear Hon. Speaker of the National Assembly, Secretary to the NCOP, and Undersecretary of the National Assembly (RPP),

I am writing to your respective offices under conditions of extreme duress to formally report an immediate threat to my physical safety and survival. As a direct result of the systemic regulatory failures and unlawful corporate retaliation detailed in my Consolidated Protected Disclosure (Matthee v AfroCentric/Medscheme), I am now in active danger from predatory creditors.

The unlawful 40.47% deduction (R14,811.77) applied to my salary in July 2025, combined with my subsequent constructive dismissal, has resulted in absolute financial destitution. This unbroken causal chain has led to the following immediate crises:

Physical Threat: My personal possessions have been physically seized by loan sharks acting as informal debt security.

Shelter: I am facing imminent eviction, having accumulated four months of rental arrears.

Basic Sanitation: I have been living without running water since January 2026.

Professional Sabotage: I have been deregistered by the SANC due to an inability to pay the R870 annual fee, permanently stripping me of my ability to generate income as a Specialist Nurse and Case Manager to survive this crisis.

The intervention of regulatory bodies thus far has been characterized by deflection and silence. I am a whistleblower who reported a Priority 1 patient safety risk affecting 1.9 million GEMS beneficiaries. In return, I have been left

completely destitute, suffering from formally diagnosed severe depression and PTSD, and am now facing immediate physical intimidation from unregulated creditors.

ANN2

I urgently require immediate parliamentary oversight, protection, and humanitarian intervention. The "regulatory carousel" has exhausted all of my resources, and my physical safety is no longer guaranteed.

I implore the National Assembly and the NCOP to take immediate action and escalate this to the relevant portfolio committees for emergency relief.

Yours faithfully,
Wilbur William Matthee
RN | BTech General Nursing | PGDip Health Services Management (NQF 8)
Founder, EthicHawks Forensic Governance & Compliance Consultancy
069 635 1435
15 Bellevue Street, Voorbrug, Cape town, 7001

Disclaimer

Please note: This email and its content are subject to the disclaimer as displayed at the following URL: <https://www.parliament.gov.za/email-disclaimer>

This email has been scanned for viruses and malware, and may have been automatically archived by Mimecast, a leader in email security and cyber resilience. Mimecast integrates email defenses with brand protection, security awareness training, web security, compliance and other essential capabilities. Mimecast helps protect large and small organizations from malicious activity, human error and technology failure; and to lead the movement toward building a more resilient world. To find out more, visit our website.

From : jason.whyte@deney.co.za

To : "Wilbur Matthee" <info@ethichawks.co.za>,"Frances Barker" <Frances.Barker@deney.co.za>,"vijay.makenjee@afrocentrichealth.com" <vijay.makenjee@afrocentrichealth.com>

Cc : "IR@afrocentrichealth.com" <IR@afrocentrichealth.com>,"lebohang.mpumlwana@afrocentrichealth.com" <lebohang.mpumlwana@afrocentrichealth.com>

Subject : RE: ADVANCE SERVICE: Unilateral Pre-Trial Minute – Case No: 2026-083299 / 2026-077546 [IMAN-CPT_MATTERS.FID2264505]

Date : 10 Jun 2026 07:37

Dear Mr Matthee

We confirm receipt of your email.

As previously advised, we do not act for AfroCentric Health (Pty) Ltd or Medscheme Holdings (Pty) Ltd in the Labour Court proceedings.

In respect of the broader resolution of your disputes with AfroCentric Investment Corporation Limited, its subsidiaries and directors, we confirm that we are in the process of taking instructions and will revert to you on receipt of same. For present purposes we note that you have indicated a reluctance to conduct a meeting with ourselves and our client, and would prefer to have any discussions take place by way of email correspondence.

Kind regards

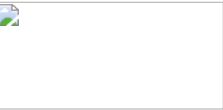
Jason Whyte | Director

Deneys Cape Town, South Africa

9th floor, 117 on Strand, 117 Strand Street, Cape Town 8001, South Africa

Tel: +27 21 405 1208 | Mobile: +27 83 236 3059

jason.whyte@deney.co.za



As the world moves

deney.co.za

We are a proudly BEE Level 1 Law Firm

Advisory: If our bank account details change, we will notify you by phone or in person, but never by email. Please always verify any change in our banking details by oral communication. Be suspicious of emails from unknown or external senders and be alert to impersonation attempts to redirect funds inappropriately. Always check the sender’s email address.

From: Wilbur Matthee <info@ethichawks.co.za>

Sent: 9 June 2026 9:04 pm

To: Jason Whyte <jason.whyte@deney.co.za>; Frances Barker <Frances.Barker@deney.co.za>; vijay.makenjee@afrocentrichealth.com

Cc: IR@afrocentrichealth.com; lebohang.mpumlwana@afrocentrichealth.com

Subject: ADVANCE SERVICE: Unilateral Pre-Trial Minute – Case No: 2026-083299 / 2026-077546

Importance: High

[Attachments: PreTrial_Minute_Matthee_v_AfroCentric_11June2026_V_0_3.pdf](#)

Dear Ms. Barker and Mr. Whyte,

RE: MATTHEE V AFROCENTRIC HEALTH (PTY) LTD & ANOTHER – CONCURRENT CASE NO: 2026-083299 / 2026-077546

Kindly find attached an advance, signed copy of the Plaintiff’s Unilateral Pre-Trial Minute, which is finalized for formal filing with the Registrar of the Labour Court on Thursday, 11 June 2026, in terms of Rule 22.

As recorded in the preamble of the Minute, the Plaintiff remains amenable to an amicable, lawful disposition of all pending matters. However, the statutory pre-trial process cannot remain indefinitely suspended while awaiting a substantive response to your unsolicited "without prejudice" approach of 4 June 2026.

Barring a fully compliant, signed joint pre-trial agreement or an executed settlement framework before then, this Unilateral Minute will be placed before the Registrar on the morning of 11 June 2026 without further notice.

Yours faithfully,

Sr Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)

Founder — EthicHawks Forensic Governance & Compliance Consultancy

info@ethichawks.co.za | 069 635 1435

Developer — Wilbur Method™ Forensic Framework | PalCare Clinical Governance Platform

CI (SA) Compliance Practitioner (Associate) — CISA Pledge to the Code of Ethical and Professional Conduct

Compliance Institute of Southern Africa (CISA) | Membership Designation: CPrac(SA) — Pending Final Certification Modules

<https://www.ethichawks.co.za> | Cape Town, South Africa

ANN3

Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules

CONFIDENTIALITY NOTICE: *This communication is intended for the addressee only, is privileged and confidential and unauthorised dissemination or copying is prohibited. If you have received this communication in error please notify us immediately and please destroy the original message. Deneys and its affiliates reserve the right to monitor all email communications through their networks.*

Deneys Reitz Inc t/a Deneys (Reg No 1984/003385/21)..